

R.S.M. Inter College And Bholarampur v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 2 December 2020 · Writ - C No. 20108 of 2020 · Writ - C No. 20108 of 2020 · **Writ disposed of; relegated to Clause 7.10 CGRF.**

HEADNOTE

A writ challenging a distribution licensee's demand notice and a recovery citation for electricity dues is not maintainable under Article 226 where disputed questions of fact arise and an alternative remedy exists under Clause 7.10 of the U.P. Electricity Supply Code, 2005 of complaint to the Electricity Consumer Grievance Redressal Forum. The petition was disposed of with liberty to avail that forum.

FACTUAL SUMMARY

The petitioner, R.S.M. Inter College And Bholarampur, challenged a demand notice dated 1 February 2018 of the distribution licensee and a recovery citation dated 28 February 2020 for Rs 1,66,802 plus five talwana. It sought certiorari to quash both and mandamus against coercive recovery. Counsel for the Power Corporation respondents objected that Clause 7.10 of the U.P. Electricity Supply Code, 2005 provided an alternative remedy before the Electricity Consumer Grievance Redressal Forum. The petitioner did not dispute that remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF alternative remedy for demand and recovery disputes

HOLDING

Where a consumer's writ against a demand notice and recovery citation raises disputed questions of fact, the High Court will not entertain the petition under Article 226 and will relegate the petitioner to the alternative remedy of complaint before the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Applied to a challenge to a demand notice and recovery citation: billing/recovery grievance must take the Clause 7.10 forum route rather than a writ on disputed facts. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Clause 7.10 CGRF complaint treated as the available alternative remedy; petitioner did not dispute it, and the writ was disposed of with liberty to avail that forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 1.2.2018 AND THE RECOVERY CITATION DATED 28.2.2020

Merits not examined because of disputed questions of fact and the Clause 7.10 alternative remedy. ¶ 1